

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF KINGS

Index No.:

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TRAVION ISAACS,

Date Filed:

Plaintiff,

Plaintiff designates
Kings County as the
Place of Trial

-against-

SUMMONS

THE CITY OF NEW YORK, NEW YORK CITY POLICE
DEPARTMENT and JOHN DOE (said name being
fictitious and unknown but described as the officer accused
of assault and wrongful arrest),

The basis of venue is the place of
occurrence:

Defendants.

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To the above named Defendants:

YOU ARE HEREBY SUMMONED to answer the complaint in this action and to serve a copy of your answer, or, if the complaint is not served with this Summons, to served a notice of appearance, in the Plaintiff's Attorney(s) within 20 days after the service of this Summons, exclusive of the day of service (or within 30 days after the service is complete if this Summons is not personally delivered to you within the State of New York); and if you fail to appear or answer, judgment will be taken against you by default for the relief demanded in the complaint.

Dated: New York, New York
February 25, 2020

**LAW OFFICES OF
SPAR & BERNSTEIN, P.C.**


David Moreno, Esq.
Attorneys for Plaintiff
TRAVION ISAACS
225 Broadway, 5th Floor
New York, New York 10007
(212) 227-3636 (tel)
(212) 791-1230 (fax)

The City of New York
C/O Corporation Counsel
100 Church Street
New York, New York 10007

New York City Police Department
C/O Corporation Counsel
100 Church Street
New York, New York 10007

John Doe (said name being fictitious and unknown but
described as the officer accused of assault and wrongful arrest)
C/O New York City Police Department
100 Church Street
New York, New York 10007

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF KINGS

-----X

TRAVION ISAACS,

Index No:

Plaintiff,

VERIFIED COMPLAINT

-against-

THE CITY OF NEW YORK, NEW YORK CITY POLICE
DEPARTMENT and JOHN DOE (said name being
fictitious and unknown but described as the officer accused
of assault and wrongful arrest),

Defendants.

-----X

Plaintiff, **TRAVION ISAACS**, by his attorneys, Spar & Bernstein PC, as and for a cause
of action alleges upon information and belief as follows:

1. At all times hereinafter mentioned, Plaintiff was and still is a resident of the
County of Kings and State of New York.

2. That the cause of action alleged herein arose in the County of Kings, City of New
York and State of New York.

3. At all times hereinafter mentioned, Defendant, THE CITY OF NEW YORK, its
agents, servants and/or employees operated, maintained and controlled the Police Department of
the City of New York, specifically the 69th Precinct located at 9720 Foster Avenue, Brooklyn,
New York 11236, including all police officers thereof.

4. On September 10, 2019, Plaintiff duly served a Notice of Claim upon the City of New
York.

5. Plaintiff duly served a Notice of Claim upon the City of New York in the manner and

mode required by law.

6. That the statutory 50-H Hearing was held on November 21, 2019, and that thereafter said Comptroller for the City of New York refused or neglected for more than thirty (30) days, and up to the commencement of this action, to make any adjustment or payment thereof.

7. That the Plaintiff has complied with all conditions precedent applicable to the instant action.

8. That this action falls within one or more of the exceptions of the CPLR §1602.

AS AND FOR A FIRST CAUSE OF ACTION

9. Plaintiff repeats and reiterates each and every allegation contained in paragraphs numbered “1” through “8” above as if fully set forth herein.

10. On July 2, 2019, at approximately 4:30 p.m. while Plaintiff was lawfully in front of P.S. 276, The Louis Marshall School located at 1070 East 83rd Street, Brooklyn, New York 11236. Plaintiff was wrongfully assaulted and falsely arrested without provocation or justification, by Police Officers employed by Defendant, THE CITY OF NEW YORK.

11. As a result of the foregoing, Plaintiff was caused to suffer a violation of his civil rights, negligent and intentional infliction of personal injuries, emotional distress, anguish, anxiety, fear humiliation, loss of freedom and damage to his reputation and standing within his community.

12. As a result of the foregoing, Plaintiff demands judgment against Defendants in a sum of money which exceeds the jurisdictional limits of all lower Courts.

AS AND FOR A SECOND CAUSE OF ACTION

13. Plaintiff, repeats and reiterate each and every allegation contained in paragraphs numbered “1” through “12” above as if fully set forth herein.

14. On July 2, 2019, at approximately 4:30 p.m. while Plaintiff was lawfully in front of P.S. 276, The Louis Marshall School located at 1070 East 83rd Street, Brooklyn, New York 11236. Plaintiff was assaulted and falsely arrested without provocation or justification, by Police Officers employed by Defendant, THE CITY OF NEW YORK.

15. As result of the foregoing, Plaintiff was caused to suffer a violation of his civil rights, negligent and intentional infliction of personal injuries, emotional distress, anguish, anxiety, fear, humiliation, loss of freedom and damage to his reputation and standing within his community.

16. As a result of the foregoing, Plaintiff, demands judgment against Defendants in a sum of money which exceeds the jurisdictional limits of all lower Courts.

AS AND FOR A THIRD CAUSE OF ACTION

17. Plaintiff, repeats and reiterates each and every allegation contained in paragraphs numbered "1" through "16" above as if fully set forth herein.

18. On July 2, 2019, at approximately 4:30 p.m. while Plaintiff was lawfully in front of P.S. 276, The Louis Marshall School located at 1070 East 83rd Street, Brooklyn, New York 11236. Plaintiff was wrongfully detained, assaulted and arrested without provocation or justification, by police officers employed by Defendant, THE CITY OF NEW YORK, through its agents, servants and/or employees, did wrongfully assault, detain and imprison the Plaintiff without probable cause, without an arrest warrant and in bad faith.

19. At the aforesaid time and place, Defendants, wrongfully arrested and forcibly assaulted, detained, restrained, and maliciously prosecuted the Plaintiff.

20. Plaintiff was subsequently arrested and was charged with unlawful possession of marijuana. Plaintiff was forced to make a Court appearance and to defend himself against these charges.

21. The criminal charges against the Plaintiff were subsequently dismissed.

22. In commencing and continuing said wrongful detainment and imprisonment, Defendants caused Plaintiff to be wrongfully arrested and detained in violation Penal Laws of the State of New York and his constitutional rights.

23. At the time of the unlawful imprisonment, Plaintiff had not committed any illegal act.

24. At the time of Plaintiff's unlawful imprisonment, Plaintiff had not committed or attempted to commit any crime.

25. Plaintiff had not given Defendants probable cause to believe that he had committed any illegal acts.

26. At the time of Plaintiff's assault and unlawful imprisonment, Defendants knew or should have known through exercise of proper procedure and reasonable investigation that the aforementioned imprisonment was without justification.

27. Defendants, acted in bad faith and without justification in committing the aforesaid assault and detention of Plaintiff.

28. Defendants willfully and wrongfully accused the Plaintiff of having committed a crime in violation of the Penal Laws of the State of New York.

29. As a result of the foregoing, Plaintiff was caused to suffer a violation of his civil rights, negligent and intentional infliction of personal injuries, emotional distress, anguish, anxiety, fear humiliation, loss of freedom and damage to his reputation and standing within his community.

30. As a result of the foregoing, Plaintiff demands judgment against Defendants in a sum of money which exceeds the jurisdictional limits of all lower Courts.

AS AND FOR A FOURTH CAUSE OF ACTION

31. Plaintiff repeats and reiterates each and every allegation contained in paragraphs numbered “1” through “30” above as if fully set forth herein.

32. On July 2, 2019, at approximately 4:30 p.m. while Plaintiff was lawfully in front of P.S. 276, The Louis Marshall School located at 1070 East 83rd Street, Brooklyn, New York 11236. Plaintiff was falsely arrested, assaulted and wrongfully detained without provocation or justification, by police officers employed by Defendant, THE CITY OF NEW YORK, through its agents, servants and/or employees.

33. Defendant, THE CITY OF NEW YORK, by and through its agents, servants and/or employees, negligently and carelessly performed their duties in that they failed to exercise such care in the performance of their police duties as a reasonably prudent police officer would have under similar circumstances.

34. As a result of Defendants’ negligence Plaintiff was caused to suffer a violation of his civil rights, negligent and intentional infliction of personal injuries, emotional distress, anguish, anxiety, fear, humiliation, loss of freedom and damage to his reputation and standing within his community.

35. As a result of the forgoing, Plaintiff, demands judgment against Defendants in a sum of money which exceeds the jurisdictional limits of all lower Courts.

AS AND FOR A FIFTH CAUSE OF ACTION

36. Plaintiff repeats and reiterates each and every allegation contained in paragraphs numbered “1” through “35” above as if fully set forth herein.

37. On July 2, 2019, at approximately 4:30 p.m. while Plaintiff was lawfully in front of P.S. 276, The Louis Marshall School located at 1070 East 83rd Street, Brooklyn, New York

11236. Defendants, CITY OF NEW YORK, and THE NEW YORK CITY POLICE DEPARTMENT, did improperly, violently, forcibly and without warrant right or privilege assaulted and arrested Plaintiff.

38. Plaintiff was handcuffed, falsely arrested and detained without provocation or justification by Defendants.

39. Plaintiff was arrested and detained against his will.

40. Said detention was without warrant, probable cause and/or justification.

41. The actions of Defendant, CITY OF NEW YORK, its agents, servants and/or employees heretofore described constitute unlawful arrest and detention and imprisonment and were designed to and did cause a violation of the Plaintiff's Constitutional Rights as guaranteed under 42 U.S.C. § 1983 and the Fourth and Fourteenth Amendments to the United States Constitution and the Constitution of the State of New York.

42. Defendants violated Plaintiff's civil rights by subjecting him to an illegal search and seizure in violation of the 42 U.S.C. § 1983, of the U.S. Constitution and the Constitution of the State of New York.

43. The actions of Defendants, heretofore described constitute unlawful detention, imprisonment were designed to and did cause a violation of the Plaintiff's Constitutional Rights as guaranteed under 42 U.S.C. § 1983 and United States Constitution, Fourth and Fourteenth and the Constitution of the State of New York.

44. That the conduct and action of Defendants, acting in concert and under color of State Law in detaining Plaintiff, was done intentionally, maliciously and/or with a reckless disregard for the natural and probable consequences of their acts, was done without justification, and was designed to and did cause a violation of Plaintiff's Constitutional Rights as guaranteed

under 42 U.S.C. §1983 and United States Constitution, Fourth and Fourteenth and the Constitution of the State of New York.

45. Defendants deprived Plaintiff of his liberty in violation of his civil and constitutional rights as guaranteed under 42 U.S.C. § 1983 and United States Constitution, Fourth and Fourteenth Amendments and the Constitution of the State of New York.

46. Defendants were in the vicinity known as in front of P.S. 276, The Louis Marshall School located at 1070 East 83rd Street, Brooklyn, New York 11236, and without warrant and without probable cause in violation of Plaintiff's civil rights and constitutional rights as set forth in the Fourth Amendment of the United States Constitution.

47. The actions taken by Defendant, CITY OF NEW YORK's agents, servants and/or employees were undertaken under color of law and would not have existed but for said Defendant, CITY OF NEW YORK's agents, servant and/or employees using their official power.

48. As a result of the above constitutionally impermissible conduct, Plaintiff was caused to suffer a violation of his civil rights, personal injuries, emotional distress, anguish, anxiety, fear, humiliation, loss of freedom and damage to his reputation and standing within his community.

49. As a result of Defendant's impermissible conduct, Plaintiff demand judgment against Defendants in a sum of money which exceed the jurisdictional limits of all lower Courts.

AS AND FOR A SIXTH CAUSE OF ACTION

50. Plaintiff repeats and reiterates each and every allegation contained in paragraphs number "1" through "49" above as if fully set forth herein.

51. The supervisors and policy making officer of Defendant, CITY OF NEW YORK and its Police Department as a matter of policy, have failed to take steps to terminate the above detailed practices and have failed to discipline or otherwise properly supervise the individuals engaged in such practices.

52. Defendant, CITY OF NEW YORK, has failed to properly train and effectively train their employees with regard to the proper constitutional and statutory limits on the exercise of their authority, and such failure continues to this day.

53. Defendant, CITY OF NEW YORK, hired and retained in its employ certain police officers, with knowledge that said officers had vicious propensities and were therefore unfit to be police officers.

54. As a result of the foregoing, Plaintiff was caused to suffer a violation of his civil rights, negligent and intentional infliction of personal injuries, emotional distress, anguish, anxiety, fear, humiliation, loss of freedom and damage to his reputation and standing within his community.

55. As a result of the foregoing, Plaintiff demands judgment against Defendants in a sum of money which exceeds the jurisdictional limits of all lower Courts.

AS AND FOR A SEVENTH CAUSE OF ACTION

56. Plaintiff repeats and reiterate each and every allegation contained in paragraphs numbered "1" through "55" above as if fully set forth.

57. Defendant, CITY OF NEW YORK, hired and retained in its employ police officers with knowledge that said police officers lacked the experience to be employed by the aforementioned Defendants, and therefore were unfit to be police officers.

58. Defendant, CITY OF NEW YORK, hired and retained in its employ police officers with the knowledge that said police officers lacked deportment to be employed by the aforementioned Defendant, and therefore, were unfit to be officers.

59. Defendant, CITY OF NEW YORK, hired and retained in its employ, police officers with that said officers had vicious propensities and were therefore unfit to be officers.

60. As a result of the foregoing, Plaintiff was caused to suffer a violation of his civil rights, negligent and intentional infliction of personal injuries, emotional distress, anguish, anxiety, fear, humiliation, loss of freedom and damage to his reputation and standing within his community.

61. As a result of the foregoing, Plaintiff demands judgment against Defendants in a sum of money which exceeds the jurisdictional limits of all lower Courts.

AS AND FOR A EIGHTH CAUSE OF ACTION

62. Plaintiff repeats and reiterates each and every allegation contained in paragraphs numbered "1" though "61" above as if fully set forth.

63. Defendants' conduct toward Plaintiff was so outrageous and shocking that it exceeds all reasonable bounds of decency tolerated by the average member of the community.

64. Defendants acted with desire to cause Plaintiff distress or acted under circumstances known to them which made it substantially certain that they would cause such distress and personal injuries to said Plaintiff.

65. Defendants acted with utter disregard of the consequences of their actions.

66. As a result of the foregoing, Plaintiff was caused to suffer a violation of his civil rights, negligent and intentional infliction of personal injuries, emotional distress, anguish,

anxiety, fear, humiliation, loss of freedom and damage to his reputation and standing within his community.

67. As a result of the foregoing, Plaintiff demands judgment against Defendants in a sum of money which exceeds the jurisdictional limits of all lower Courts.

WHEREFORE, Plaintiff demands judgment against the Defendants herein on all causes of action, and requests compensatory and punitive damages in a sum exceeding the jurisdictional limits of all lower courts which would otherwise have jurisdiction, an award for reasonable attorney's fees, cost and disbursements of their action; and such other and further relief as this Court may deem just, fair and proper under the circumstances.

Dated: New York, New York
February 25, 2020

**LAW OFFICES OF
SPAR & BERNSTEIN, P.C.**



David Moreno, Esq.

Attorneys for Plaintiff

TRAVION ISAACS

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ATTORNEY VERIFICATION

DAVID MORENO, an attorney admitted to practice law before the Courts of the State of New York, and associated with the firm of SPAR & BERNSTEIN PC, attorneys for the Plaintiff **TRAVION ISAACS**, affirms the following:

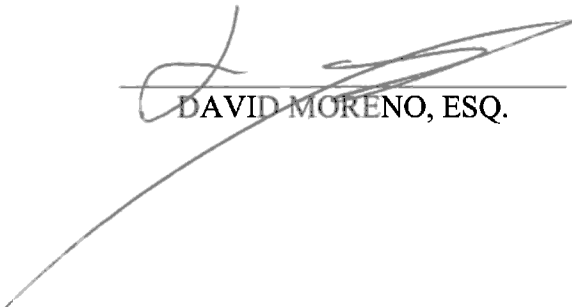
That I have read the foregoing **SUMMONS AND VERIFIED COMPLAINT** and know the contents thereof, that the same is true to my own knowledge except as to those matters which are stated therein to be alleged upon information and belief, and as to those matters, I believe them to be true.

That the information contained therein was obtained based upon a review of Plaintiff's legal case file.

That the reason this verification is made by your affirmant and not by the Plaintiff is because the Plaintiff does not reside within New York County, where **SPAR & BERNSTEIN, P.C.**, maintains its office.

The undersigned affirms that the foregoing statement is true under the penalties of perjury.

Dated: New York, New York
February 25, 2020



DAVID MORENO, ESQ.

**SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF KINGS**

INDEX NO.:

TRAVION ISAACS,

Plaintiff,

-against-

**THE CITY OF NEW YORK, NEW YORK CITY POLICE DEPARTMENT and JOHN
DOE (said name being fictitious and unknown but described as the officer accused of
assault and wrongful arrest),**

Defendants.

SUMMONS & VERIFIED COMPLAINT

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